eliminates strong-arm tactics by providing for a seat on the council for the support of every 20 per cent of workers. Fourth, it makes the life of enterprises employing less than 300 workers simpler, by making certain restrictive conditions—mandatory certification of complete standing orders and taking prior permission before layoff, retrenchment and closure—applicable only to industrial establishments that have over 300 workers on their rolls. Fifth, it prohibits strikes and lockouts in all industrial establishments without fourteen days' notice.

These changes tilt the balance in favour of entrepreneurs as there are only a few thousand industrial establishments in India with over 300 workers. However, it is difficult to understand why government permission is needed for factories that employ more than 300 workers. Starting and closing an enterprise should be the decision of entrepreneurs, depending on economic factors and their financial conditions.

Implementation of Labour Laws Progressing Very Slowly

The first labour code—the Code on Wages—after approval of the Parliament and the President, was published on 8 August 2019 in the e-Gazette of India. The notification to bring the law into force was still to be issued at the end of March 2021. The same has been the fate of the three other laws, though these were notified later in September–November 2020.

Labour laws use the concept of appropriate government. The Codes need detailed rules to implement the provisions of the Code. The rules are framed by the 'appropriate government'. The Central government is the appropriate government for establishments of the Central government, railways, mines, oil fields, major ports, air transport service, telecommunication, banking and insurance company or a corporation or other authority, established by a Central Act or CPSEs or their subsidiaries or autonomous bodies owned and controlled by the Central government, including contractors for any of these establishments. The state government